

Avneesh Kumar v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 4 February 2021 · Writ - C No. 3571 of 2021 · **Writ disposed; Executive Engineer to decide the representation in accordance with law, preferably within six weeks.**

HEADNOTE

On a writ challenging an Executive Engineer's order stopping a 10 HP tube-well connection because a co-sharer's title suit was pending, the Allahabad High Court did not decide whether the stop-order violated natural justice or whether a connection may be withheld without an injunction. The licensee having submitted that an indemnity bond and other U.P. Electricity Supply Code, 2005 formalities were required for the disputed plot, the Court disposed of the petition by directing the officer to consider and decide the pending or a fresh representation by a reasoned speaking order, preferably within six weeks, in accordance with law.

FACTUAL SUMMARY

Avneesh Kumar, a co-sharer of plots at Village Varna, Etah, applied on 20 February 2018 for a 10 HP tube-well connection on the strength of a 2007 family settlement. Poles and a transformer were being erected when a co-sharer, plaintiff in Original Suit No. 323 of 2019, complained of the pending title dispute. On 17 June 2019 the Executive Engineer stopped the connection. The petitioner alleged the order was passed without notice and without any injunction, and sought a direction on his 21 June 2019 representation. The licensee invoked Supply Code indemnity-bond formalities for the disputed plot.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

new-connection-disputed-title-indemnity

HOLDING

Where a new tube-well connection had been stopped on a co-sharer's complaint of a pending title suit, and the licensee submitted that an indemnity bond and other Supply Code formalities were required, the High Court did not decide the legality of the stop-order and instead directed the concerned officer to consider and decide the consumer's pending or fresh representation by a reasoned speaking order in accordance with law. ¶ 1

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents Without granting or refusing the tube-well connection, the Court directed the officer who had stopped supply to consider the pending or a fresh representation in accordance with law, after the licensee had invoked Supply Code indemnity-bond formalities for the disputed plot. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 17 JUNE 2019 ORDER STOPPING THE TUBE-WELL CONNECTION WITHOUT NOTICE

The Court neither quashed nor sustained the stop-order; it remitted the representation. ¶ 1

NOT DECIDED — WHETHER A PENDING TITLE SUIT WITHOUT INJUNCTION IS SUFFICIENT TO WITHHOLD A NEW AGRICULTURAL CONNECTION

¶ 1

NOT DECIDED — WHETHER AN INDEMNITY BOND UNDER THE SUPPLY CODE WAS A PRECONDITION TO RELEASING THE CONNECTION

Raised by the licensee; not decided. ¶ 1

